

SENATE No. 521

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve support ratification of Federal Child Labor Constitutional Amendment.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

SENATE No. 521

By Mr. Lewis (by request), a petition (accompanied by resolve, Senate, No. 521) of Vincent Dixon, for legislation to support ratification of Federal Child Labor Constitutional Amendment. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve support ratification of Federal Child Labor Constitutional Amendment.

1 **Resolved**, SECTION I

2 The following text, is the proposed Amendment forwarded to the states, for potential
3 Ratification, on June 2, 1924:

4 Section 1. The Congress shall have the power to limit, regulate, and prohibit the labor of
5 persons under eighteen years of age.

6 Section 2. The power of the several States is unimpaired by this article except that the
7 operation of State laws shall be suspended to the extent necessary to give effect to legislation
8 enacted by the Congress.

9 This Amendment, was the subject of a case: Coleman v. Miller (307 US 433), which
10 confirmed without ambiguity, that since the proposed Amendment, had no indication of time
11 limitation, that it is still under consideration. As recently, as 2024, the State of Connecticut,
12 considered Ratification of this Amendment, not completing action, because of the end of their
13 legislative session.

14 SECTION II

15 Recent years, have provided news coverage of many examples, where child labor has
16 been used, potentially illegally, unsafely, and certainly not in a friendly way; Constitutional
17 Protections, are thought by many, to be more potentially effective, than statutes; and this issue
18 should be further considered.

19 SECTION III

20 Massachusetts, in an odd circumstance, voted by ballot, state-wide, in 1924, to refuse
21 Ratification of this Amendment. – However, given a newer public climate, that tends to support
22 the rights of children, more vigorously, it could be that Massachusetts, could, by vote of The
23 General Court, Ratify this Child Labor Amendment (CLA).

24 Since 2018, numerous states, have at least considered additional action. At this point, 28
25 states having Ratified this Amendment, only ten additional states, would be needed to complete
26 Ratification of this Amendment.

27 SECTION IV

28 Public education, is authorized, by The Commonwealth of Massachusetts, and most
29 specifically, within the role of The Secretary of the Commonwealth, to provide important voter
30 information.